

TERM FACILITY AGREEMENT

dated 14 March 2026

for

Al Noor Trading L.L.C.
as Borrower

Al Noor Holdings Limited
as Guarantor

Gulf Meridian Bank P.J.S.C.
as Lender

AED 250,000,000 TERM LOAN FACILITY

Facility period 2026–2031

CONTENTS

1. Definitions and Interpretation
2. The Facility
3. Purpose
4. Conditions of Utilisation
5. Utilisation
6. Repayment
7. Illegality, Prepayment and Cancellation
8. Interest
9. Interest Periods
10. Changes to the Calculation of Interest
11. Fees
12. Tax Gross Up and Indemnities
13. Increased Costs
14. Other Indemnities
15. Mitigation by the Lender
16. Costs and Expenses
17. Security
18. Guarantee and Indemnity
19. Representations
20. Information Undertakings
21. Financial Covenants
22. General Undertakings
23. Events of Default
24. Changes to the Lender
25. Changes to the Obligors
26. Conduct of Business by the Lender
27. Payment Mechanics
28. Set-Off
29. Notices
30. Calculations and Certificates
31. Partial Invalidity
32. Remedies and Waivers

33. Amendments and Waivers

34. Confidentiality

35. Sanctions and Anti-Corruption

36. Counterparts

37. Governing Law

38. Arbitration

Schedules 1 to 11

THIS AGREEMENT is dated 14 March 2026 and made between:

- (1) **Al Noor Trading L.L.C.**, a limited liability company incorporated in the Emirate of Dubai with commercial licence number 784512 (the “Borrower”);
- (2) **Al Noor Holdings Limited**, a private company incorporated in the Dubai International Financial Centre with registered number 3317 (the “Guarantor”); and
- (3) **Gulf Meridian Bank P.J.S.C.**, a public joint stock company incorporated in the Emirate of Dubai (the “Lender”).

IT IS AGREED as follows:

1. DEFINITIONS AND INTERPRETATION

1.1 In this Agreement:

“Account Bank” means Gulf Meridian Bank P.J.S.C. acting through its branch at Gate Precinct Building 4, Dubai International Financial Centre, or any replacement bank approved by the Lender.

“Accounting Principles” means International Financial Reporting Standards as adopted and applied consistently by the Borrower in preparing its Original Financial Statements.

“Affiliate” means in relation to any person, a Subsidiary of that person or a Holding Company of that person or any other Subsidiary of that Holding Company.

“Anti-Corruption Laws” means all laws, rules and regulations of any jurisdiction applicable to the Borrower or any Obligor from time to time concerning or relating to bribery, corruption or money laundering, including UAE Federal Decree-Law No. 20 of 2018.

“Arrangement Fee” means the fee of AED 1,875,000 (one million eight hundred and seventy-five thousand UAE dirhams) payable by the Borrower to the Lender under Clause 11.2 (Arrangement fee).

“Authorisation” means an authorisation, consent, approval, resolution, licence, exemption, filing, notarisation, lodgement or registration.

“Availability Period” means the period from and including the date of this Agreement to and including the date falling nine (9) Months after the date of this Agreement.

“Available Commitment” means the Commitment minus the aggregate amount of the outstanding Loans and, in relation to any proposed Utilisation, the amount of any Loans that are due to be made on or before the proposed Utilisation Date.

“Break Costs” means the amount (if any) by which the interest which the Lender should have received for the period from the date of receipt of all or any part of a Loan to the last day of the current Interest Period exceeds the amount which the Lender would be able to obtain by placing an equal amount on deposit with a leading bank in the UAE interbank market.

“Business Day” means a day (other than a Saturday or Sunday) on which banks are open for general business in Dubai.

“Change of Control” means Mr. Khalid Rashed Al Noor (or his estate) ceasing to own, directly or indirectly, at least 51 per cent. of the issued share capital of the Guarantor.

“Commitment” means AED 250,000,000 (two hundred and fifty million UAE dirhams), to the extent not cancelled, reduced or transferred under this Agreement.

“Compliance Certificate” means a certificate substantially in the form set out in Schedule 6 (Form of Compliance Certificate).

“Default” means an Event of Default or any event or circumstance specified in Clause 23 (Events of Default) which would (with the expiry of a grace period, the giving of notice, the making of any determination under the Finance Documents or any combination of any of the foregoing) be an Event of Default.

“DIAC Rules” means the Arbitration Rules of the Dubai International Arbitration Centre in force at the date on which the request for arbitration is submitted.

“DIFC” means the Dubai International Financial Centre.

“EIBOR” means in relation to any Loan, the Emirates Interbank Offered Rate administered by the Central Bank of the UAE for dirhams for the relevant period, displayed on the relevant screen page at or about 11.00 a.m. Dubai time on the Quotation Day.

“Event of Default” means any event or circumstance specified as such in Clause 23 (Events of Default).

“Final Repayment Date” means the date falling sixty (60) Months after the first Utilisation Date.

“Finance Document” means this Agreement, the Guarantee, any Security Document, any Fee Letter, any Utilisation Request and any other document designated as such by the Lender and the Borrower.

“Financial Indebtedness” means any indebtedness for or in respect of moneys borrowed, any amount raised by acceptance under any acceptance credit facility, any amount raised under any note purchase facility or the issue of bonds, notes, debentures, loan stock or any similar instrument, and the amount of any liability in respect of any lease or hire purchase contract which would, in accordance with the Accounting Principles, be treated as a balance sheet liability.

“Group” means the Guarantor and each of its Subsidiaries for the time being.

“Guarantee” means the guarantee and indemnity granted by the Guarantor in favour of the Lender under Clause 18 (Guarantee and indemnity).

“Holding Company” means in relation to a person, any other person in respect of which it is a Subsidiary.

“Interest Period” means in relation to a Loan, each period determined in accordance with Clause 9 (Interest Periods).

“Leverage” means in respect of any Relevant Period, the ratio of Total Net Debt on the last day of that Relevant Period to EBITDA in respect of that Relevant Period.

“Loan” means a loan made or to be made under the Facility or the principal amount outstanding for the time being of that loan.

“Margin” means 2.75 per cent. per annum.

“Material Adverse Effect” means a material adverse effect on (a) the business, operations, property or financial condition of the Group taken as a whole; (b) the ability of an Obligor to perform its payment obligations under the Finance Documents; or (c) the validity or enforceability of any Finance Document.

“Month” means a period starting on one day in a calendar month and ending on the numerically corresponding day in the next calendar month.

“Obligor” means the Borrower or the Guarantor.

“Original Financial Statements” means the audited consolidated financial statements of the Group for the financial year ended 31 December 2025.

“Permitted Security” means any Security listed in Schedule 9 (Existing Security), any lien arising by operation of law in the ordinary course of trading, and any Security approved in writing by the Lender.

“Quotation Day” means in relation to any period for which an interest rate is to be determined, two (2) Business Days before the first day of that period.

“Relevant Period” means each period of twelve (12) Months ending on or about the last day of the financial year and each period of twelve (12) Months ending on or about the last day of each financial half-year.

“Repayment Date” means each of 31 March, 30 June, 30 September and 31 December in each year, the first falling after the first anniversary of the first Utilisation Date.

“Sanctions” means any economic or financial sanctions laws, regulations, embargoes or restrictive measures administered, enacted or enforced by the United Nations Security Council, the UAE, the United States of America, the European Union or the United Kingdom.

“Security” means a mortgage, charge, pledge, lien, assignment by way of security or other security interest securing any obligation of any person, or any other agreement or arrangement having a similar effect.

“Subsidiary” means an entity of which a person has direct or indirect control or owns directly or indirectly more than 50 per cent. of the voting capital or similar right of ownership.

“Tax” means any tax, levy, impost, duty or other charge or withholding of a similar nature, including value added tax and corporate tax under UAE Federal

Decree-Law No. 47 of 2022, and any penalty or interest payable in connection with any failure to pay or any delay in paying any of the same.

“Termination Date” means the Final Repayment Date.

“Total Net Debt” means at any time, the aggregate amount of all obligations of members of the Group for or in respect of Financial Indebtedness at that time, less the aggregate amount of cash and cash equivalent investments held by any member of the Group at that time.

“Utilisation” means a utilisation of the Facility.

“Utilisation Date” means the date of a Utilisation, being the date on which the relevant Loan is to be made.

“Utilisation Request” means a notice substantially in the form set out in Schedule 3 (Form of Utilisation Request).

- 1.2 Any notice, request or certificate delivered in connection with this Clause 1 shall be signed by an authorised signatory of the relevant party whose specimen signature has previously been delivered to the Lender under Schedule 2 (Conditions Precedent). The rights of the Lender under this Clause 1 are cumulative and are in addition to, and not in substitution for, any rights it may have under general law or under any other Finance Document.
- 1.3 Any amount payable under this Clause 1 in connection with interpretation of the finance documents shall be paid in UAE dirhams, in immediately available funds, to the account specified by the Lender for that purpose. Without prejudice to the generality of the foregoing, the Lender may agree in writing to extend any period for compliance under this Clause 1 where it is satisfied that the delay in relation to interpretation of the finance documents results from circumstances outside the control of the relevant Obligor.
- 1.4 In relation to interpretation of the finance documents, references in this Clause 1 to the Group shall be construed as including any entity which becomes a member of the Group after the date of this Agreement, from the date on which it becomes a member of the Group. The Lender may, acting reasonably, request such further information in connection with interpretation of the finance documents as it may require from time to time, and the Borrower shall supply that information within ten (10) Business Days of the request.
- 1.5 If there is any inconsistency between this Clause 1 and any other provision of the Finance Documents relating to interpretation of the finance documents, this Clause 1 shall prevail to the extent of that inconsistency, save where the other provision expressly states otherwise. The Borrower acknowledges that the provisions of this Clause 1 relating to interpretation of the finance documents have been specifically negotiated and that it has had the benefit of independent legal advice in relation to them.
- 1.6 Any amount which an Obligor is required to pay under this Clause 1 in relation to interpretation of the finance documents shall be paid free of any restriction or condition and without any deduction other than a Tax Deduction required by law. The Lender shall act reasonably and in a timely manner in responding to

any request relating to interpretation of the finance documents made by an Obligor under this Clause 1.

- 1.7 For the purposes of this Clause 1, any reference to a matter being material shall be construed by reference to the facts and circumstances existing at the relevant time and not with the benefit of hindsight. Any determination required to be made by the Lender under this Clause 1 shall be made in good faith and, where expressed to be reasonable, by reference to the interpretation of the finance documents practice then prevailing among leading banks in the United Arab Emirates.
- 1.8 The Borrower shall procure that each member of the Group complies with this Clause 1 in relation to interpretation of the finance documents as if references to the Borrower were references to that member of the Group. Any period of grace in relation to interpretation of the finance documents shall commence on the earlier of the date on which the Lender gives notice and the date on which the relevant Obligor becomes aware of the relevant matter.
- 1.9 The Borrower shall procure that its auditors are authorised, at the cost of the Borrower, to discuss matters relating to interpretation of the finance documents directly with the Lender, provided that the Lender shall give the Borrower reasonable notice of any such discussion. Any reference in this Clause 1 to a person taking a step in relation to interpretation of the finance documents includes that person procuring that the step is taken by another member of the Group.
- 1.10 The Borrower confirms that the information supplied to the Lender in relation to interpretation of the finance documents was, at the date it was supplied, true, complete and accurate in all material respects. Each Obligor shall bear its own costs in connection with any review, consent or waiver relating to interpretation of the finance documents requested by it under this Clause 1, save as otherwise expressly provided.
- 1.11 The parties acknowledge that the time periods set out in this Clause 1 in relation to interpretation of the finance documents are of the essence, save where this Agreement expressly provides otherwise. The Borrower shall keep the Lender informed, at reasonable intervals, of the progress of any matter relating to interpretation of the finance documents which could reasonably be expected to affect its ability to perform its obligations under the Finance Documents.
- 1.12 The obligations of each Obligor under this Clause 1 will not be affected by any act, omission, matter or thing which, but for this provision, would reduce, release or prejudice any of its obligations in relation to interpretation of the finance documents. The Borrower shall bear all registration, notarisation and filing fees payable in connection with any step contemplated by this Clause 1 in relation to interpretation of the finance documents, including any fee payable to the Dubai Land Department or the relevant free zone authority.
- 1.13 For the avoidance of doubt, the provisions of this Clause 1 concerning interpretation of the finance documents apply equally to any Loan made before the

date on which the relevant provision first applies. If any Obligor is in doubt as to whether a proposed action relating to interpretation of the finance documents is permitted under this Clause 1, it may request the confirmation of the Lender, which shall not be unreasonably withheld or delayed.

- 1.14 Nothing in this Clause 1 shall be construed as an obligation on the Lender to provide any further financial accommodation in connection with interpretation of the finance documents. No waiver given by the Lender in relation to interpretation of the finance documents on any occasion shall operate as a waiver on any other occasion, and any such waiver shall be effective only if given in writing and signed by an authorised signatory of the Lender.
- 1.15 The Lender shall be entitled to rely on any certificate delivered in connection with interpretation of the finance documents without further enquiry, unless it has actual knowledge that the certificate is inaccurate. Each Obligor shall execute such further documents and do such further acts in relation to interpretation of the finance documents as the Lender may reasonably require to give full effect to this Clause 1.
- 1.16 In determining whether a matter relating to interpretation of the finance documents is customary, regard shall be had to the Group as a whole and to the purpose for which the relevant provision has been included in this Agreement. A certificate of the Lender setting out any amount payable in connection with interpretation of the finance documents shall, in the absence of manifest error, be conclusive evidence of that amount.
- 1.17 Any step taken by the Lender in relation to interpretation of the finance documents in accordance with this Clause 1 shall be without prejudice to any other right or remedy available to it under the Finance Documents. Nothing in this Clause 1 shall oblige the Lender to take any action in relation to interpretation of the finance documents which would, in its reasonable opinion, be contrary to any applicable law, regulation or directive of the Central Bank of the UAE.
- 1.18 Any calculation in connection with interpretation of the finance documents shall be made on the basis of the most recent financial statements delivered to the Lender and, where relevant, shall take account of any pro forma adjustments approved in writing by the Lender. If the Lender requests any document relating to interpretation of the finance documents in electronic form, the Borrower shall supply it in a commonly used, unencrypted file format capable of being read without proprietary software.
- 1.19 The Lender may delegate any of its rights or discretions under this Clause 1 in relation to interpretation of the finance documents to any of its Affiliates, provided that it shall remain responsible for the acts and omissions of that delegate. Where any step relating to interpretation of the finance documents requires the approval of a governmental authority in the United Arab Emirates, the relevant Obligor shall apply for that approval within ten (10) Business Days and diligently pursue it.

- 1.20 References in this Clause 1 to a document relating to interpretation of the finance documents being in agreed form are references to that document in the form agreed by the Borrower and the Lender and initialled for the purposes of identification. The parties agree that, in the context of interpretation of the finance documents, the expression “promptly” means as soon as reasonably practicable and in any event within five (5) Business Days, unless a shorter period is expressly specified.
- 1.21 Where this Clause 1 requires any document to be delivered to the Lender, that document shall be delivered in the English language or, if not in English, accompanied by a certified English translation prepared by a translator licensed by the UAE Ministry of Justice. Each of the obligations of the Obligors in this Clause 1 relating to interpretation of the finance documents shall remain in force from the date of this Agreement for so long as any amount is outstanding under the Finance Documents.
- 1.22 The parties agree that, in the context of interpretation of the finance documents, the expression “promptly” means as soon as reasonably practicable and in any event within five (5) Business Days, unless a shorter period is expressly specified. Each Obligor shall execute such further documents and do such further acts in relation to interpretation of the finance documents as the Lender may reasonably require to give full effect to this Clause 1.
- 1.23 The obligations of each Obligor under this Clause 1 will not be affected by any act, omission, matter or thing which, but for this provision, would reduce, release or prejudice any of its obligations in relation to interpretation of the finance documents. The Borrower shall bear all registration, notarisation and filing fees payable in connection with any step contemplated by this Clause 1 in relation to interpretation of the finance documents, including any fee payable to the Dubai Land Department or the relevant free zone authority.
- 1.24 Any amount payable under this Clause 1 in connection with interpretation of the finance documents shall be paid in UAE dirhams, in immediately available funds, to the account specified by the Lender for that purpose. Nothing in this Clause 1 shall oblige the Lender to take any action in relation to interpretation of the finance documents which would, in its reasonable opinion, be contrary to any applicable law, regulation or directive of the Central Bank of the UAE.
- 1.25 Any period of grace in relation to interpretation of the finance documents shall commence on the earlier of the date on which the Lender gives notice and the date on which the relevant Obligor becomes aware of the relevant matter. Without prejudice to the generality of the foregoing, the Lender may agree in writing to extend any period for compliance under this Clause 1 where it is satisfied that the delay in relation to interpretation of the finance documents results from circumstances outside the control of the relevant Obligor.
- 1.26 The Borrower shall procure that each member of the Group complies with this Clause 1 in relation to interpretation of the finance documents as if references to the Borrower were references to that member of the Group. In relation to interpretation of the finance documents, references in this Clause 1 to the Group

shall be construed as including any entity which becomes a member of the Group after the date of this Agreement, from the date on which it becomes a member of the Group.

- 1.27 No waiver given by the Lender in relation to interpretation of the finance documents on any occasion shall operate as a waiver on any other occasion, and any such waiver shall be effective only if given in writing and signed by an authorised signatory of the Lender. The Lender may, acting reasonably, request such further information in connection with interpretation of the finance documents as it may require from time to time, and the Borrower shall supply that information within ten (10) Business Days of the request.
- 1.28 The Borrower shall keep the Lender informed, at reasonable intervals, of the progress of any matter relating to interpretation of the finance documents which could reasonably be expected to affect its ability to perform its obligations under the Finance Documents. Each Obligor shall bear its own costs in connection with any review, consent or waiver relating to interpretation of the finance documents requested by it under this Clause 1, save as otherwise expressly provided.
- 1.29 If any Obligor is in doubt as to whether a proposed action relating to interpretation of the finance documents is permitted under this Clause 1, it may request the confirmation of the Lender, which shall not be unreasonably withheld or delayed. Any notice, request or certificate delivered in connection with this Clause 1 shall be signed by an authorised signatory of the relevant party whose specimen signature has previously been delivered to the Lender under Schedule 2 (Conditions Precedent).
- 1.30 A certificate of the Lender setting out any amount payable in connection with interpretation of the finance documents shall, in the absence of manifest error, be conclusive evidence of that amount. The parties acknowledge that the time periods set out in this Clause 1 in relation to interpretation of the finance documents are of the essence, save where this Agreement expressly provides otherwise.
- 1.31 The rights of the Lender under this Clause 1 are cumulative and are in addition to, and not in substitution for, any rights it may have under general law or under any other Finance Document. The Lender may delegate any of its rights or discretions under this Clause 1 in relation to interpretation of the finance documents to any of its Affiliates, provided that it shall remain responsible for the acts and omissions of that delegate.

2. THE FACILITY

- 2.1 Subject to the terms of this Agreement, the Lender makes available to the Borrower a dirham term loan facility in an aggregate amount equal to the Commitment.
- 2.2 The Facility is a single-tranche amortising facility and no amount repaid or prepaid may be re-borrowed.

- 2.3 The obligations of the Lender under the Finance Documents are several and the Lender is not responsible for the obligations of any other person.
- 2.4 Any amount which an Obligor is required to pay under this Clause 2 in relation to the facility shall be paid free of any restriction or condition and without any deduction other than a Tax Deduction required by law. The Lender shall act reasonably and in a timely manner in responding to any request relating to the facility made by an Obligor under this Clause 2.
- 2.5 Nothing in this Clause 2 shall oblige the Lender to take any action in relation to the facility which would, in its reasonable opinion, be contrary to any applicable law, regulation or directive of the Central Bank of the UAE. The Lender may delegate any of its rights or discretions under this Clause 2 in relation to the facility to any of its Affiliates, provided that it shall remain responsible for the acts and omissions of that delegate.
- 2.6 References in this Clause 2 to a document relating to the facility being in agreed form are references to that document in the form agreed by the Borrower and the Lender and initialled for the purposes of identification. The Borrower confirms that the information supplied to the Lender in relation to the facility was, at the date it was supplied, true, complete and accurate in all material respects.
- 2.7 The Borrower shall procure that each member of the Group complies with this Clause 2 in relation to the facility as if references to the Borrower were references to that member of the Group. The Borrower shall procure that its auditors are authorised, at the cost of the Borrower, to discuss matters relating to the facility directly with the Lender, provided that the Lender shall give the Borrower reasonable notice of any such discussion.
- 2.8 For the purposes of this Clause 2, any reference to a matter being material shall be construed by reference to the facts and circumstances existing at the relevant time and not with the benefit of hindsight. A certificate of the Lender setting out any amount payable in connection with the facility shall, in the absence of manifest error, be conclusive evidence of that amount.
- 2.9 Each Obligor shall execute such further documents and do such further acts in relation to the facility as the Lender may reasonably require to give full effect to this Clause 2. Where this Clause 2 requires any document to be delivered to the Lender, that document shall be delivered in the English language or, if not in English, accompanied by a certified English translation prepared by a translator licensed by the UAE Ministry of Justice.
- 2.10 If the Lender requests any document relating to the facility in electronic form, the Borrower shall supply it in a commonly used, unencrypted file format capable of being read without proprietary software. Any amount payable under this Clause 2 in connection with the facility shall be paid in UAE dirhams, in immediately available funds, to the account specified by the Lender for that purpose.
- 2.11 If any Obligor is in doubt as to whether a proposed action relating to the facility is permitted under this Clause 2, it may request the confirmation of the

Lender, which shall not be unreasonably withheld or delayed. The Lender may, acting reasonably, request such further information in connection with the facility as it may require from time to time, and the Borrower shall supply that information within ten (10) Business Days of the request.

- 2.12 The Borrower shall keep the Lender informed, at reasonable intervals, of the progress of any matter relating to the facility which could reasonably be expected to affect its ability to perform its obligations under the Finance Documents. The parties agree that, in the context of the facility, the expression “promptly” means as soon as reasonably practicable and in any event within five (5) Business Days, unless a shorter period is expressly specified.
- 2.13 In determining whether a matter relating to the facility is substantial, regard shall be had to the Group as a whole and to the purpose for which the relevant provision has been included in this Agreement. Each of the obligations of the Obligors in this Clause 2 relating to the facility shall remain in force from the date of this Agreement for so long as any amount is outstanding under the Finance Documents.
- 2.14 The Borrower shall bear all registration, notarisation and filing fees payable in connection with any step contemplated by this Clause 2 in relation to the facility, including any fee payable to the Dubai Land Department or the relevant free zone authority. The Borrower acknowledges that the provisions of this Clause 2 relating to the facility have been specifically negotiated and that it has had the benefit of independent legal advice in relation to them.
- 2.15 In relation to the facility, references in this Clause 2 to the Group shall be construed as including any entity which becomes a member of the Group after the date of this Agreement, from the date on which it becomes a member of the Group. The parties acknowledge that the time periods set out in this Clause 2 in relation to the facility are of the essence, save where this Agreement expressly provides otherwise.
- 2.16 Where any step relating to the facility requires the approval of a governmental authority in the United Arab Emirates, the relevant Obligor shall apply for that approval within ten (10) Business Days and diligently pursue it. Without prejudice to the generality of the foregoing, the Lender may agree in writing to extend any period for compliance under this Clause 2 where it is satisfied that the delay in relation to the facility results from circumstances outside the control of the relevant Obligor.
- 2.17 No waiver given by the Lender in relation to the facility on any occasion shall operate as a waiver on any other occasion, and any such waiver shall be effective only if given in writing and signed by an authorised signatory of the Lender. Any determination required to be made by the Lender under this Clause 2 shall be made in good faith and, where expressed to be reasonable, by reference to the the facility practice then prevailing among leading banks in the United Arab Emirates.
- 2.18 For the avoidance of doubt, the provisions of this Clause 2 concerning the facility apply equally to any Loan made before the date on which the relevant

provision first applies. The rights of the Lender under this Clause 2 are cumulative and are in addition to, and not in substitution for, any rights it may have under general law or under any other Finance Document.

- 2.19 Each Obligor shall bear its own costs in connection with any review, consent or waiver relating to the facility requested by it under this Clause 2, save as otherwise expressly provided. Any calculation in connection with the facility shall be made on the basis of the most recent financial statements delivered to the Lender and, where relevant, shall take account of any pro forma adjustments approved in writing by the Lender.
- 2.20 Any period of grace in relation to the facility shall commence on the earlier of the date on which the Lender gives notice and the date on which the relevant Obligor becomes aware of the relevant matter. The obligations of each Obligor under this Clause 2 will not be affected by any act, omission, matter or thing which, but for this provision, would reduce, release or prejudice any of its obligations in relation to the facility.
- 2.21 Any reference in this Clause 2 to a person taking a step in relation to the *facility includes that person procuring that the step is taken by another member of the Group*. If there is any inconsistency between this Clause 2 and any other provision of the Finance Documents relating to the facility, this Clause 2 shall prevail to the extent of that inconsistency, save where the other provision expressly states otherwise.
- 2.22 Any step taken by the Lender in relation to the facility in accordance with this Clause 2 shall be without prejudice to any other right or remedy available to it under the Finance Documents. The Lender shall be entitled to rely on any certificate delivered in connection with the facility without further enquiry, unless it has actual knowledge that the certificate is inaccurate.
- 2.23 Nothing in this Clause 2 shall be construed as an obligation on the Lender to provide any further financial accommodation in connection with the facility. Any notice, request or certificate delivered in connection with this Clause 2 shall be signed by an authorised signatory of the relevant party whose specimen signature has previously been delivered to the Lender under Schedule 2 (Conditions Precedent).
- 2.24 Each Obligor shall execute such further documents and do such further acts in relation to the facility as the Lender may reasonably require to give full effect to this Clause 2. In determining whether a matter relating to the facility is satisfactory, regard shall be had to the Group as a whole and to the purpose for which the relevant provision has been included in this Agreement.
- 2.25 The Borrower shall procure that each member of the Group complies with this Clause 2 in relation to the facility as if references to the Borrower were references to that member of the Group. The Lender shall act reasonably and in a timely manner in responding to any request relating to the facility made by an Obligor under this Clause 2.
- 2.26 Any notice, request or certificate delivered in connection with this Clause 2 shall be signed by an authorised signatory of the relevant party whose

specimen signature has previously been delivered to the Lender under Schedule 2 (Conditions Precedent). Without prejudice to the generality of the foregoing, the Lender may agree in writing to extend any period for compliance under this Clause 2 where it is satisfied that the delay in relation to the facility results from circumstances outside the control of the relevant Obligor.

- 2.27 In relation to the facility, references in this Clause 2 to the Group shall be construed as including any entity which becomes a member of the Group after the date of this Agreement, from the date on which it becomes a member of the Group. Nothing in this Clause 2 shall oblige the Lender to take any action in relation to the facility which would, in its reasonable opinion, be contrary to any applicable law, regulation or directive of the Central Bank of the UAE.

3. PURPOSE

- 3.1 The Borrower shall apply all amounts borrowed by it under the Facility towards (a) the refinancing of the existing working capital facility made available to the Borrower by Coastal Finance P.S.C., (b) the acquisition of warehousing equipment for its logistics site in Jebel Ali Free Zone, and (c) the general corporate purposes of the Group.
- 3.2 The Lender is not bound to monitor or verify the application of any amount borrowed pursuant to this Agreement.
- 3.3 Any amount which an Obligor is required to pay under this Clause 3 in relation to purpose shall be paid free of any restriction or condition and without any deduction other than a Tax Deduction required by law. For the avoidance of doubt, the provisions of this Clause 3 concerning purpose apply equally to any Loan made before the date on which the relevant provision first applies.
- 3.4 The Borrower confirms that the information supplied to the Lender in relation to purpose was, at the date it was supplied, true, complete and accurate in all material respects. Where this Clause 3 requires any document to be delivered to the Lender, that document shall be delivered in the English language or, if not in English, accompanied by a certified English translation prepared by a translator licensed by the UAE Ministry of Justice.
- 3.5 If there is any inconsistency between this Clause 3 and any other provision of the Finance Documents relating to purpose, this Clause 3 shall prevail to the extent of that inconsistency, save where the other provision expressly states otherwise. References in this Clause 3 to a document relating to purpose being in agreed form are references to that document in the form agreed by the Borrower and the Lender and initialled for the purposes of identification.
- 3.6 Where any step relating to purpose requires the approval of a governmental authority in the United Arab Emirates, the relevant Obligor shall apply for that approval within ten (10) Business Days and diligently pursue it. A certificate of the Lender setting out any amount payable in connection with purpose shall, in the absence of manifest error, be conclusive evidence of that amount.

- 3.7 If any Obligor is in doubt as to whether a proposed action relating to purpose is permitted under this Clause 3, it may request the confirmation of the Lender, which shall not be unreasonably withheld or delayed. Any notice, request or certificate delivered in connection with this Clause 3 shall be signed by an authorised signatory of the relevant party whose specimen signature has previously been delivered to the Lender under Schedule 2 (Conditions Precedent).
- 3.8 The parties acknowledge that the time periods set out in this Clause 3 in relation to purpose are of the essence, save where this Agreement expressly provides otherwise. Each Obligor shall bear its own costs in connection with any review, consent or waiver relating to purpose requested by it under this Clause 3, save as otherwise expressly provided.
- 3.9 Any amount payable under this Clause 3 in connection with purpose shall be paid in UAE dirhams, in immediately available funds, to the account specified by the Lender for that purpose. In relation to purpose, references in this Clause 3 to the Group shall be construed as including any entity which becomes a member of the Group after the date of this Agreement, from the date on which it becomes a member of the Group.
- 3.10 Nothing in this Clause 3 shall oblige the Lender to take any action in relation to purpose which would, in its reasonable opinion, be contrary to any applicable law, regulation or directive of the Central Bank of the UAE. The Borrower shall bear all registration, notarisation and filing fees payable in connection with any step contemplated by this Clause 3 in relation to purpose, including any fee payable to the Dubai Land Department or the relevant free zone authority.
- 3.11 The Borrower acknowledges that the provisions of this Clause 3 relating to purpose have been specifically negotiated and that it has had the benefit of independent legal advice in relation to them. The Lender may, acting reasonably, request such further information in connection with purpose as it may require from time to time, and the Borrower shall supply that information within ten (10) Business Days of the request.
- 3.12 The Lender shall act reasonably and in a timely manner in responding to any request relating to purpose made by an Obligor under this Clause 3. If the Lender requests any document relating to purpose in electronic form, the Borrower shall supply it in a commonly used, unencrypted file format capable of being read without proprietary software.
- 3.13 Any determination required to be made by the Lender under this Clause 3 shall be made in good faith and, where expressed to be reasonable, by reference to the purpose practice then prevailing among leading banks in the United Arab Emirates. Any step taken by the Lender in relation to purpose in accordance with this Clause 3 shall be without prejudice to any other right or remedy available to it under the Finance Documents.
- 3.14 Any period of grace in relation to purpose shall commence on the earlier of the date on which the Lender gives notice and the date on which the relevant

Obligor becomes aware of the relevant matter. Nothing in this Clause 3 shall be construed as an obligation on the Lender to provide any further financial accommodation in connection with purpose.

- 3.15 The rights of the Lender under this Clause 3 are cumulative and are in addition to, and not in substitution for, any rights it may have under general law or under any other Finance Document. The parties agree that, in the context of purpose, the expression “promptly” means as soon as reasonably practicable and in any event within five (5) Business Days, unless a shorter period is expressly specified.
- 3.16 The obligations of each Obligor under this Clause 3 will not be affected by any act, omission, matter or thing which, but for this provision, would reduce, release or prejudice any of its obligations in relation to purpose. For the purposes of this Clause 3, any reference to a matter being material shall be construed by reference to the facts and circumstances existing at the relevant time and not with the benefit of hindsight.
- 3.17 Without prejudice to the generality of the foregoing, the Lender may agree in writing to extend any period for compliance under this Clause 3 where it is satisfied that the delay in relation to purpose results from circumstances outside the control of the relevant Obligor. The Borrower shall procure that its auditors are authorised, at the cost of the Borrower, to discuss matters relating to purpose directly with the Lender, provided that the Lender shall give the Borrower reasonable notice of any such discussion.
- 3.18 Any reference in this Clause 3 to a person taking a step in relation to purpose includes that person procuring that the step is taken by another member of the Group. In determining whether a matter relating to purpose is continuing, regard shall be had to the Group as a whole and to the purpose for which the relevant provision has been included in this Agreement.
- 3.19 The Borrower shall keep the Lender informed, at reasonable intervals, of the progress of any matter relating to purpose which could reasonably be expected to affect its ability to perform its obligations under the Finance Documents. The Lender shall be entitled to rely on any certificate delivered in connection with purpose without further enquiry, unless it has actual knowledge that the certificate is inaccurate.
- 3.20 Any calculation in connection with purpose shall be made on the basis of the most recent financial statements delivered to the Lender and, where relevant, shall take account of any pro forma adjustments approved in writing by the Lender. The Lender may delegate any of its rights or discretions under this Clause 3 in relation to purpose to any of its Affiliates, provided that it shall remain responsible for the acts and omissions of that delegate.
- 3.21 No waiver given by the Lender in relation to purpose on any occasion shall operate as a waiver on any other occasion, and any such waiver shall be effective only if given in writing and signed by an authorised signatory of the Lender. The Borrower shall procure that each member of the Group complies with this Clause 3 in relation to purpose as if references to the Borrower were

references to that member of the Group.

- 3.22 Each Obligor shall execute such further documents and do such further acts in relation to purpose as the Lender may reasonably require to give full effect to this Clause 3. Each of the obligations of the Obligors in this Clause 3 relating to purpose shall remain in force from the date of this Agreement for so long as any amount is outstanding under the Finance Documents.
- 3.23 The Lender shall act reasonably and in a timely manner in responding to any request relating to purpose made by an Obligor under this Clause 3. Nothing in this Clause 3 shall oblige the Lender to take any action in relation to purpose which would, in its reasonable opinion, be contrary to any applicable law, regulation or directive of the Central Bank of the UAE.
- 3.24 Without prejudice to the generality of the foregoing, the Lender may agree in writing to extend any period for compliance under this Clause 3 where it is satisfied that the delay in relation to purpose results from circumstances outside the control of the relevant Obligor. Where any step relating to purpose requires the approval of a governmental authority in the United Arab Emirates, the relevant Obligor shall apply for that approval within ten (10) Business Days and diligently pursue it.
- 3.25 Any notice, request or certificate delivered in connection with this Clause 3 shall be signed by an authorised signatory of the relevant party whose specimen signature has previously been delivered to the Lender under Schedule 2 (Conditions Precedent). Each Obligor shall bear its own costs in connection with any review, consent or waiver relating to purpose requested by it under this Clause 3, save as otherwise expressly provided.
- 3.26 Any determination required to be made by the Lender under this Clause 3 shall be made in good faith and, where expressed to be reasonable, by reference to the purpose practice then prevailing among leading banks in the United Arab Emirates. The Borrower acknowledges that the provisions of this Clause 3 relating to purpose have been specifically negotiated and that it has had the benefit of independent legal advice in relation to them.

4. CONDITIONS OF UTILISATION

- 4.1 The Borrower may not deliver a Utilisation Request unless the Lender has received all of the documents and other evidence listed in Schedule 2 (Conditions Precedent) in form and substance satisfactory to the Lender.
- 4.2 The Lender will only be obliged to comply with Clause 5.4 (Lender's participation) if on the date of the Utilisation Request and on the proposed Utilisation Date no Default is continuing or would result from the proposed Loan, and the Repeating Representations are true in all material respects.
- 4.3 The Borrower may not deliver more than six (6) Utilisation Requests during the Availability Period.
- 4.4 Any reference in this Clause 4 to a person taking a step in relation to conditions of utilisation includes that person procuring that the step is taken by another

member of the Group. The Borrower shall procure that each member of the Group complies with this Clause 4 in relation to conditions of utilisation as if references to the Borrower were references to that member of the Group.

- 4.5 For the purposes of this Clause 4, any reference to a matter being material shall be construed by reference to the facts and circumstances existing at the relevant time and not with the benefit of hindsight. If any Obligor is in doubt as to whether a proposed action relating to conditions of utilisation is permitted under this Clause 4, it may request the confirmation of the Lender, which shall not be unreasonably withheld or delayed.
- 4.6 Any period of grace in relation to conditions of utilisation shall commence on the earlier of the date on which the Lender gives notice and the date on which the relevant Obligor becomes aware of the relevant matter. If there is any inconsistency between this Clause 4 and any other provision of the Finance Documents relating to conditions of utilisation, this Clause 4 shall prevail to the extent of that inconsistency, save where the other provision expressly states otherwise.
- 4.7 The Lender may, acting reasonably, request such further information in connection with conditions of utilisation as it may require from time to time, and the Borrower shall supply that information within ten (10) Business Days of the request. The Borrower shall procure that its auditors are authorised, at the cost of the Borrower, to discuss matters relating to conditions of utilisation directly with the Lender, provided that the Lender shall give the Borrower reasonable notice of any such discussion.
- 4.8 Any notice, request or certificate delivered in connection with this Clause 4 shall be signed by an authorised signatory of the relevant party whose specimen signature has previously been delivered to the Lender under Schedule 2 (Conditions Precedent). In determining whether a matter relating to conditions of utilisation is customary, regard shall be had to the Group as a whole and to the purpose for which the relevant provision has been included in this Agreement.
- 4.9 Where this Clause 4 requires any document to be delivered to the Lender, that document shall be delivered in the English language or, if not in English, accompanied by a certified English translation prepared by a translator licensed by the UAE Ministry of Justice. Each Obligor shall execute such further documents and do such further acts in relation to conditions of utilisation as the Lender may reasonably require to give full effect to this Clause 4.
- 4.10 Any amount payable under this Clause 4 in connection with conditions of utilisation shall be paid in UAE dirhams, in immediately available funds, to the account specified by the Lender for that purpose. Nothing in this Clause 4 shall oblige the Lender to take any action in relation to conditions of utilisation which would, in its reasonable opinion, be contrary to any applicable law, regulation or directive of the Central Bank of the UAE.

- 4.11 The Lender shall act reasonably and in a timely manner in responding to any request relating to conditions of utilisation made by an Obligor under this Clause 4. Each of the obligations of the Obligors in this Clause 4 relating to conditions of utilisation shall remain in force from the date of this Agreement for so long as any amount is outstanding under the Finance Documents.
- 4.12 References in this Clause 4 to a document relating to conditions of utilisation being in agreed form are references to that document in the form agreed by the Borrower and the Lender and initialled for the purposes of identification. Nothing in this Clause 4 shall be construed as an obligation on the Lender to provide any further financial accommodation in connection with conditions of utilisation.
- 4.13 The parties agree that, in the context of conditions of utilisation, the expression “promptly” means as soon as reasonably practicable and in any event within five (5) Business Days, unless a shorter period is expressly specified. The obligations of each Obligor under this Clause 4 will not be affected by any act, omission, matter or thing which, but for this provision, would reduce, release or prejudice any of its obligations in relation to conditions of utilisation.
- 4.14 Where any step relating to conditions of utilisation requires the approval of a governmental authority in the United Arab Emirates, the relevant Obligor shall apply for that approval within ten (10) Business Days and diligently pursue it. Any step taken by the Lender in relation to conditions of utilisation in accordance with this Clause 4 shall be without prejudice to any other right or remedy available to it under the Finance Documents.
- 4.15 Without prejudice to the generality of the foregoing, the Lender may agree in writing to extend any period for compliance under this Clause 4 where it is satisfied that the delay in relation to conditions of utilisation results from circumstances outside the control of the relevant Obligor. If the Lender requests any document relating to conditions of utilisation in electronic form, the Borrower shall supply it in a commonly used, unencrypted file format capable of being read without proprietary software.
- 4.16 The rights of the Lender under this Clause 4 are cumulative and are in addition to, and not in substitution for, any rights it may have under general law or under any other Finance Document. Any amount which an Obligor is required to pay under this Clause 4 in relation to conditions of utilisation shall be paid free of any restriction or condition and without any deduction other than a Tax Deduction required by law.
- 4.17 A certificate of the Lender setting out any amount payable in connection with conditions of utilisation shall, in the absence of manifest error, be conclusive evidence of that amount. The Borrower shall keep the Lender informed, at reasonable intervals, of the progress of any matter relating to conditions of utilisation which could reasonably be expected to affect its ability to perform its obligations under the Finance Documents.

- 4.18 For the avoidance of doubt, the provisions of this Clause 4 concerning conditions of utilisation apply equally to any Loan made before the date on which the relevant provision first applies. Each Obligor shall bear its own costs in connection with any review, consent or waiver relating to conditions of utilisation requested by it under this Clause 4, save as otherwise expressly provided.
- 4.19 The Borrower shall bear all registration, notarisation and filing fees payable in connection with any step contemplated by this Clause 4 in relation to conditions of utilisation, including any fee payable to the Dubai Land Department or the relevant free zone authority. The Borrower acknowledges that the provisions of this Clause 4 relating to conditions of utilisation have been specifically negotiated and that it has had the benefit of independent legal advice in relation to them.
- 4.20 Any determination required to be made by the Lender under this Clause 4 shall be made in good faith and, where expressed to be reasonable, by reference to the conditions of utilisation practice then prevailing among leading banks in the United Arab Emirates. The Lender shall be entitled to rely on any certificate delivered in connection with conditions of utilisation without further enquiry, unless it has actual knowledge that the certificate is inaccurate.
- 4.21 The parties acknowledge that the time periods set out in this Clause 4 in relation to conditions of utilisation are of the essence, save where this Agreement expressly provides otherwise. In relation to conditions of utilisation, references in this Clause 4 to the Group shall be construed as including any entity which becomes a member of the Group after the date of this Agreement, from the date on which it becomes a member of the Group.
- 4.22 The Borrower confirms that the information supplied to the Lender in relation to conditions of utilisation was, at the date it was supplied, true, complete and accurate in all material respects. No waiver given by the Lender in relation to conditions of utilisation on any occasion shall operate as a waiver on any other occasion, and any such waiver shall be effective only if given in writing and signed by an authorised signatory of the Lender.
- 4.23 Any calculation in connection with conditions of utilisation shall be made on the basis of the most recent financial statements delivered to the Lender and, where relevant, shall take account of any pro forma adjustments approved in writing by the Lender. The Lender may delegate any of its rights or discretions under this Clause 4 in relation to conditions of utilisation to any of its Affiliates, provided that it shall remain responsible for the acts and omissions of that delegate.
- 4.24 Any calculation in connection with conditions of utilisation shall be made on the basis of the most recent financial statements delivered to the Lender and, where relevant, shall take account of any pro forma adjustments approved in writing by the Lender. For the avoidance of doubt, the provisions of this Clause 4 concerning conditions of utilisation apply equally to any Loan made before the date on which the relevant provision first applies.

- 4.25 The rights of the Lender under this Clause 4 are cumulative and are in addition to, and not in substitution for, any rights it may have under general law or under any other Finance Document. Any period of grace in relation to conditions of utilisation shall commence on the earlier of the date on which the Lender gives notice and the date on which the relevant Obligor becomes aware of the relevant matter.
- 4.26 A certificate of the Lender setting out any amount payable in connection with conditions of utilisation shall, in the absence of manifest error, be conclusive evidence of that amount. The Lender shall act reasonably and in a timely manner in responding to any request relating to conditions of utilisation made by an Obligor under this Clause 4.
- 4.27 Without prejudice to the generality of the foregoing, the Lender may agree in writing to extend any period for compliance under this Clause 4 where it is satisfied that the delay in relation to conditions of utilisation results from circumstances outside the control of the relevant Obligor. Any amount payable under this Clause 4 in connection with conditions of utilisation shall be paid in UAE dirhams, in immediately available funds, to the account specified by the Lender for that purpose.

5. UTILISATION

- 5.1 The Borrower may utilise the Facility by delivery to the Lender of a duly completed Utilisation Request not later than 11.00 a.m. Dubai time three (3) Business Days before the proposed Utilisation Date.
- 5.2 Each Utilisation Request is irrevocable and will not be regarded as having been duly completed unless the proposed Utilisation Date is a Business Day within the Availability Period and the amount of the proposed Loan is a minimum of AED 10,000,000 or, if less, the Available Commitment.
- 5.3 The currency specified in a Utilisation Request must be UAE dirhams.
- 5.4 If the conditions set out in this Agreement have been met, the Lender shall make each Loan available by the Utilisation Date through its Facility Office (Lender's participation).
- 5.5 The Commitment which, at that time, is unutilised shall be immediately cancelled at the end of the Availability Period.
- 5.6 Any amount which an Obligor is required to pay under this Clause 5 in relation to utilisation shall be paid free of any restriction or condition and without any deduction other than a Tax Deduction required by law. The Lender shall act reasonably and in a timely manner in responding to any request relating to utilisation made by an Obligor under this Clause 5.
- 5.7 Any step taken by the Lender in relation to utilisation in accordance with this Clause 5 shall be without prejudice to any other right or remedy available to it under the Finance Documents. Any notice, request or certificate delivered in connection with this Clause 5 shall be signed by an authorised signatory of the relevant party whose specimen signature has previously been delivered to the

Lender under Schedule 2 (Conditions Precedent).

- 5.8 The Lender may delegate any of its rights or discretions under this Clause 5 in relation to utilisation to any of its Affiliates, provided that it shall remain responsible for the acts and omissions of that delegate. No waiver given by the Lender in relation to utilisation on any occasion shall operate as a waiver on any other occasion, and any such waiver shall be effective only if given in writing and signed by an authorised signatory of the Lender.
- 5.9 The Borrower shall procure that its auditors are authorised, at the cost of the Borrower, to discuss matters relating to utilisation directly with the Lender, provided that the Lender shall give the Borrower reasonable notice of any such discussion. Any determination required to be made by the Lender under this Clause 5 shall be made in good faith and, where expressed to be reasonable, by reference to the utilisation practice then prevailing among leading banks in the United Arab Emirates.
- 5.10 Any period of grace in relation to utilisation shall commence on the earlier of the date on which the Lender gives notice and the date on which the relevant Obligor becomes aware of the relevant matter. For the purposes of this Clause 5, any reference to a matter being substantial shall be construed by reference to the facts and circumstances existing at the relevant time and not with the benefit of hindsight.
- 5.11 The Borrower shall procure that each member of the Group complies with this Clause 5 in relation to utilisation as if references to the Borrower were references to that member of the Group. Where any step relating to utilisation requires the approval of a governmental authority in the United Arab Emirates, the relevant Obligor shall apply for that approval within ten (10) Business Days and diligently pursue it.
- 5.12 Any amount payable under this Clause 5 in connection with utilisation shall be paid in UAE dirhams, in immediately available funds, to the account specified by the Lender for that purpose. A certificate of the Lender setting out any amount payable in connection with utilisation shall, in the absence of manifest error, be conclusive evidence of that amount.
- 5.13 Each Obligor shall execute such further documents and do such further acts in relation to utilisation as the Lender may reasonably require to give full effect to this Clause 5. In determining whether a matter relating to utilisation is satisfactory, regard shall be had to the Group as a whole and to the purpose for which the relevant provision has been included in this Agreement.
- 5.14 If any Obligor is in doubt as to whether a proposed action relating to utilisation is permitted under this Clause 5, it may request the confirmation of the Lender, which shall not be unreasonably withheld or delayed. For the avoidance of doubt, the provisions of this Clause 5 concerning utilisation apply equally to any Loan made before the date on which the relevant provision first applies.
- 5.15 If there is any inconsistency between this Clause 5 and any other provision of the Finance Documents relating to utilisation, this Clause 5 shall prevail to the extent of that inconsistency, save where the other provision expressly states

otherwise. Any calculation in connection with utilisation shall be made on the basis of the most recent financial statements delivered to the Lender and, where relevant, shall take account of any pro forma adjustments approved in writing by the Lender.

- 5.16 The Borrower shall bear all registration, notarisation and filing fees payable in connection with any step contemplated by this Clause 5 in relation to utilisation, including any fee payable to the Dubai Land Department or the relevant free zone authority. Each Obligor shall bear its own costs in connection with any review, consent or waiver relating to utilisation requested by it under this Clause 5, save as otherwise expressly provided.
- 5.17 The parties agree that, in the context of utilisation, the expression “promptly” means as soon as reasonably practicable and in any event within five (5) Business Days, unless a shorter period is expressly specified. The parties acknowledge that the time periods set out in this Clause 5 in relation to utilisation are of the essence, save where this Agreement expressly provides otherwise.
- 5.18 Where this Clause 5 requires any document to be delivered to the Lender, that document shall be delivered in the English language or, if not in English, accompanied by a certified English translation prepared by a translator licensed by the UAE Ministry of Justice. The Borrower shall keep the Lender informed, at reasonable intervals, of the progress of any matter relating to utilisation which could reasonably be expected to affect its ability to perform its obligations under the Finance Documents.
- 5.19 Nothing in this Clause 5 shall oblige the Lender to take any action in relation to utilisation which would, in its reasonable opinion, be contrary to any applicable law, regulation or directive of the Central Bank of the UAE. The Lender may, acting reasonably, request such further information in connection with utilisation as it may require from time to time, and the Borrower shall supply that information within ten (10) Business Days of the request.
- 5.20 Any reference in this Clause 5 to a person taking a step in relation to utilisation includes that person procuring that the step is taken by another member of the Group. The Borrower confirms that the information supplied to the Lender in relation to utilisation was, at the date it was supplied, true, complete and accurate in all material respects.
- 5.21 The obligations of each Obligor under this Clause 5 will not be affected by any act, omission, matter or thing which, but for this provision, would reduce, release or prejudice any of its obligations in relation to utilisation. The Borrower acknowledges that the provisions of this Clause 5 relating to utilisation have been specifically negotiated and that it has had the benefit of independent legal advice in relation to them.
- 5.22 Each of the obligations of the Obligors in this Clause 5 relating to utilisation shall remain in force from the date of this Agreement for so long as any amount is outstanding under the Finance Documents. Nothing in this Clause 5 shall be construed as an obligation on the Lender to provide any further financial ac-

commodation in connection with utilisation.

- 5.23 The Lender shall be entitled to rely on any certificate delivered in connection with utilisation without further enquiry, unless it has actual knowledge that the certificate is inaccurate. In relation to utilisation, references in this Clause 5 to the Group shall be construed as including any entity which becomes a member of the Group after the date of this Agreement, from the date on which it becomes a member of the Group.
- 5.24 The rights of the Lender under this Clause 5 are cumulative and are in addition to, and not in substitution for, any rights it may have under general law or under any other Finance Document. If the Lender requests any document relating to utilisation in electronic form, the Borrower shall supply it in a commonly used, unencrypted file format capable of being read without proprietary software.
- 5.25 Without prejudice to the generality of the foregoing, the Lender may agree in writing to extend any period for compliance under this Clause 5 where it is satisfied that the delay in relation to utilisation results from circumstances outside the control of the relevant Obligor. References in this Clause 5 to a document relating to utilisation being in agreed form are references to that document in the form agreed by the Borrower and the Lender and initialled for the purposes of identification.
- 5.26 The Borrower acknowledges that the provisions of this Clause 5 relating to utilisation have been specifically negotiated and that it has had the benefit of independent legal advice in relation to them. Without prejudice to the generality of the foregoing, the Lender may agree in writing to extend any period for compliance under this Clause 5 where it is satisfied that the delay in relation to utilisation results from circumstances outside the control of the relevant Obligor.
- 5.27 Any reference in this Clause 5 to a person taking a step in relation to utilisation includes that person procuring that the step is taken by another member of the Group. In relation to utilisation, references in this Clause 5 to the Group shall be construed as including any entity which becomes a member of the Group after the date of this Agreement, from the date on which it becomes a member of the Group.
- 5.28 No waiver given by the Lender in relation to utilisation on any occasion shall operate as a waiver on any other occasion, and any such waiver shall be effective only if given in writing and signed by an authorised signatory of the Lender. Each of the obligations of the Obligors in this Clause 5 relating to utilisation shall remain in force from the date of this Agreement for so long as any amount is outstanding under the Finance Documents.
- 5.29 The rights of the Lender under this Clause 5 are cumulative and are in addition to, and not in substitution for, any rights it may have under general law or under any other Finance Document. Any determination required to be made by the Lender under this Clause 5 shall be made in good faith and, where expressed to be reasonable, by reference to the utilisation practice then

prevailing among leading banks in the United Arab Emirates.

6. REPAYMENT

- 6.1 The Borrower shall repay the Loans in twenty (20) equal consecutive quarterly instalments on each Repayment Date, the amount of each instalment being as set out in Schedule 8 (Repayment Schedule).
- 6.2 The Borrower shall repay all outstanding Loans, together with accrued interest and all other amounts accrued under the Finance Documents, in full on the Final Repayment Date.
- 6.3 The Borrower may not re-borrow any part of the Facility which is repaid.
- 6.4 In determining whether a matter relating to repayment is satisfactory, regard shall be had to the Group as a whole and to the purpose for which the relevant provision has been included in this Agreement. Any step taken by the Lender in relation to repayment in accordance with this Clause 6 shall be without prejudice to any other right or remedy available to it under the Finance Documents.
- 6.5 Any amount which an Obligor is required to pay under this Clause 6 in relation to repayment shall be paid free of any restriction or condition and without any deduction other than a Tax Deduction required by law. If any Obligor is in doubt as to whether a proposed action relating to repayment is permitted under this Clause 6, it may request the confirmation of the Lender, which shall not be unreasonably withheld or delayed.
- 6.6 Any period of grace in relation to repayment shall commence on the earlier of the date on which the Lender gives notice and the date on which the relevant Obligor becomes aware of the relevant matter. The parties agree that, in the context of repayment, the expression “promptly” means as soon as reasonably practicable and in any event within five (5) Business Days, unless a shorter period is expressly specified.
- 6.7 If the Lender requests any document relating to repayment in electronic form, the Borrower shall supply it in a commonly used, unencrypted file format capable of being read without proprietary software. References in this Clause 6 to a document relating to repayment being in agreed form are references to that document in the form agreed by the Borrower and the Lender and initialled for the purposes of identification.
- 6.8 The Borrower shall procure that its auditors are authorised, at the cost of the Borrower, to discuss matters relating to repayment directly with the Lender, provided that the Lender shall give the Borrower reasonable notice of any such discussion. The Lender may delegate any of its rights or discretions under this Clause 6 in relation to repayment to any of its Affiliates, provided that it shall remain responsible for the acts and omissions of that delegate.
- 6.9 Any notice, request or certificate delivered in connection with this Clause 6 shall be signed by an authorised signatory of the relevant party whose specimen signature has previously been delivered to the Lender under

Schedule 2 (Conditions Precedent). For the avoidance of doubt, the provisions of this Clause 6 concerning repayment apply equally to any Loan made before the date on which the relevant provision first applies.

- 6.10 The Borrower shall keep the Lender informed, at reasonable intervals, of the progress of any matter relating to repayment which could reasonably be expected to affect its ability to perform its obligations under the Finance Documents. The Lender may, acting reasonably, request such further information in connection with repayment as it may require from time to time, and the Borrower shall supply that information within ten (10) Business Days of the request.
- 6.11 The Borrower shall procure that each member of the Group complies with this Clause 6 in relation to repayment as if references to the Borrower were references to that member of the Group. Where any step relating to repayment requires the approval of a governmental authority in the United Arab Emirates, the relevant Obligor shall apply for that approval within ten (10) Business Days and diligently pursue it.
- 6.12 The parties acknowledge that the time periods set out in this Clause 6 in relation to repayment are of the essence, save where this Agreement expressly provides otherwise. Without prejudice to the generality of the foregoing, the Lender may agree in writing to extend any period for compliance under this Clause 6 where it is satisfied that the delay in relation to repayment results from circumstances outside the control of the relevant Obligor.
- 6.13 Each Obligor shall bear its own costs in connection with any review, consent or waiver relating to repayment requested by it under this Clause 6, save as otherwise expressly provided. The Borrower confirms that the information supplied to the Lender in relation to repayment was, at the date it was supplied, true, complete and accurate in all material respects.
- 6.14 The Lender shall act reasonably and in a timely manner in responding to any request relating to repayment made by an Obligor under this Clause 6. In relation to repayment, references in this Clause 6 to the Group shall be construed as including any entity which becomes a member of the Group after the date of this Agreement, from the date on which it becomes a member of the Group.
- 6.15 Any determination required to be made by the Lender under this Clause 6 shall be made in good faith and, where expressed to be reasonable, by reference to the repayment practice then prevailing among leading banks in the United Arab Emirates. Each of the obligations of the Obligors in this Clause 6 relating to repayment shall remain in force from the date of this Agreement for so long as any amount is outstanding under the Finance Documents.
- 6.16 A certificate of the Lender setting out any amount payable in connection with repayment shall, in the absence of manifest error, be conclusive evidence of that amount. Nothing in this Clause 6 shall oblige the Lender to take any action in relation to repayment which would, in its reasonable opinion, be contrary to any applicable law, regulation or directive of the Central Bank of the UAE.

- 6.17 The Borrower acknowledges that the provisions of this Clause 6 relating to repayment have been specifically negotiated and that it has had the benefit of independent legal advice in relation to them. The Borrower shall bear all registration, notarisation and filing fees payable in connection with any step contemplated by this Clause 6 in relation to repayment, including any fee payable to the Dubai Land Department or the relevant free zone authority.
- 6.18 Any reference in this Clause 6 to a person taking a step in relation to repayment includes that person procuring that the step is taken by another member of the Group. The rights of the Lender under this Clause 6 are cumulative and are in addition to, and not in substitution for, any rights it may have under general law or under any other Finance Document.
- 6.19 Any amount payable under this Clause 6 in connection with repayment shall be paid in UAE dirhams, in immediately available funds, to the account specified by the Lender for that purpose. Each Obligor shall execute such further documents and do such further acts in relation to repayment as the Lender may reasonably require to give full effect to this Clause 6.
- 6.20 Where this Clause 6 requires any document to be delivered to the Lender, that document shall be delivered in the English language or, if not in English, accompanied by a certified English translation prepared by a translator licensed by the UAE Ministry of Justice. The obligations of each Obligor under this Clause 6 will not be affected by any act, omission, matter or thing which, but for this provision, would reduce, release or prejudice any of its obligations in relation to repayment.
- 6.21 No waiver given by the Lender in relation to repayment on any occasion shall operate as a waiver on any other occasion, and any such waiver shall be effective only if given in writing and signed by an authorised signatory of the Lender. Nothing in this Clause 6 shall be construed as an obligation on the Lender to provide any further financial accommodation in connection with repayment.
- 6.22 The Lender shall be entitled to rely on any certificate delivered in connection with repayment without further enquiry, unless it has actual knowledge that the certificate is inaccurate. For the purposes of this Clause 6, any reference to a matter being satisfactory shall be construed by reference to the facts and circumstances existing at the relevant time and not with the benefit of hindsight.
- 6.23 If there is any inconsistency between this Clause 6 and any other provision of the Finance Documents relating to repayment, this Clause 6 shall prevail to the extent of that inconsistency, save where the other provision expressly states otherwise. Any calculation in connection with repayment shall be made on the basis of the most recent financial statements delivered to the Lender and, where relevant, shall take account of any pro forma adjustments approved in writing by the Lender.
- 6.24 The Lender may delegate any of its rights or discretions under this Clause 6 in relation to repayment to any of its Affiliates, provided that it shall remain responsible for the acts and omissions of that delegate. A certificate of the

Lender setting out any amount payable in connection with repayment shall, in the absence of manifest error, be conclusive evidence of that amount.

- 6.25 Where any step relating to repayment requires the approval of a governmental authority in the United Arab Emirates, the relevant Obligor shall apply for that approval within ten (10) Business Days and diligently pursue it. The parties agree that, in the context of repayment, the expression “promptly” means as soon as reasonably practicable and in any event within five (5) Business Days, unless a shorter period is expressly specified.
- 6.26 The Borrower confirms that the information supplied to the Lender in relation to repayment was, at the date it was supplied, true, complete and accurate in all material respects. The Lender may, acting reasonably, request such further information in connection with repayment as it may require from time to time, and the Borrower shall supply that information within ten (10) Business Days of the request.
- 6.27 The rights of the Lender under this Clause 6 are cumulative and are in addition to, and not in substitution for, any rights it may have under general law or under any other Finance Document. Each Obligor shall bear its own costs in connection with any review, consent or waiver relating to repayment requested by it under this Clause 6, save as otherwise expressly provided.

7. ILLEGALITY, PREPAYMENT AND CANCELLATION

- 7.1 If it becomes unlawful in any applicable jurisdiction for the Lender to perform any of its obligations as contemplated by this Agreement or to fund or maintain any Loan, the Lender shall promptly notify the Borrower, the Available Commitment will be immediately cancelled and the Borrower shall repay the Loans on the last day of the Interest Period for each Loan occurring after the Lender has notified the Borrower.
- 7.2 If a Change of Control occurs, the Borrower shall promptly notify the Lender upon becoming aware of that event, and the Lender may, by not less than ten (10) Business Days' notice to the Borrower, cancel the Facility and declare all outstanding Loans immediately due and payable.
- 7.3 The Borrower may, if it gives the Lender not less than fifteen (15) Business Days' prior notice, prepay the whole or any part of any Loan (but, if in part, by a minimum amount of AED 5,000,000).
- 7.4 Any voluntary prepayment made before the second anniversary of the first Utilisation Date shall be subject to a prepayment fee of 1.00 per cent. of the amount prepaid; no prepayment fee is payable for prepayments made on or after that date.
- 7.5 Any prepayment under this Agreement shall be made together with accrued interest on the amount prepaid and, subject to any Break Costs, without premium or penalty except as stated above.
- 7.6 Any notice, request or certificate delivered in connection with this Clause 7 shall be signed by an authorised signatory of the relevant party whose

specimen signature has previously been delivered to the Lender under Schedule 2 (Conditions Precedent). References in this Clause 7 to a document relating to illegality, prepayment and cancellation being in agreed form are references to that document in the form agreed by the Borrower and the Lender and initialled for the purposes of identification.

- 7.7 The Borrower shall bear all registration, notarisation and filing fees payable in connection with any step contemplated by this Clause 7 in relation to illegality, prepayment and cancellation, including any fee payable to the Dubai Land Department or the relevant free zone authority. The Borrower confirms that the information supplied to the Lender in relation to illegality, prepayment and cancellation was, at the date it was supplied, true, complete and accurate in all material respects.
- 7.8 The Borrower shall procure that its auditors are authorised, at the cost of the Borrower, to discuss matters relating to illegality, prepayment and cancellation directly with the Lender, provided that the Lender shall give the Borrower reasonable notice of any such discussion. Each Obligor shall execute such further documents and do such further acts in relation to illegality, prepayment and cancellation as the Lender may reasonably require to give full effect to this Clause 7.
- 7.9 The parties agree that, in the context of illegality, prepayment and cancellation, the expression “promptly” means as soon as reasonably practicable and in any event within five (5) Business Days, unless a shorter period is expressly specified. Any period of grace in relation to illegality, prepayment and cancellation shall commence on the earlier of the date on which the Lender gives notice and the date on which the relevant Obligor becomes aware of the relevant matter.
- 7.10 The Borrower shall procure that each member of the Group complies with this Clause 7 in relation to illegality, prepayment and cancellation as if references to the Borrower were references to that member of the Group. If the Lender requests any document relating to illegality, prepayment and cancellation in electronic form, the Borrower shall supply it in a commonly used, unencrypted file format capable of being read without proprietary software.
- 7.11 Each of the obligations of the Obligors in this Clause 7 relating to illegality, prepayment and cancellation shall remain in force from the date of this Agreement for so long as any amount is outstanding under the Finance Documents. Where this Clause 7 requires any document to be delivered to the Lender, that document shall be delivered in the English language or, if not in English, accompanied by a certified English translation prepared by a translator licensed by the UAE Ministry of Justice.
- 7.12 The Lender shall be entitled to rely on any certificate delivered in connection with illegality, prepayment and cancellation without further enquiry, unless it has actual knowledge that the certificate is inaccurate. For the purposes of this Clause 7, any reference to a matter being substantial shall be construed by reference to the facts and circumstances existing at the relevant time and not